

Court No. - 37

Case :- WRIT - C No. - 42704 of 2017

Petitioner :- S.S. Industries Thru Proprietor

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Raj Kumar Tiwari

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

The petitioner submits that the petitioner has offered payment and has deposited Rs.40,000/- against the amount due but the respondents had disconnected the electricity connection without considering the request of the petitioner for paying the dues in instalments.

We have heard Sri Baleshwar Chaturvedi for the respondents, then respondent no. 3 has the power to extend the benefit of instalment as per Clause 6.14 of the U.P. Electricity Supply Code, 2005. In such circumstances we direct the respondent no. 3 to consider the request of the petitioner and pass an appropriate order in terms thereof within two weeks of the date of presentation of certified copy of this order. In the event the petitioner complies with the same, the respondent no. 3 may also pass appropriate order with regard to the reconnection and regular supply of the petitioner in accordance with law.

The writ petition is **disposed of** with the said direction.

Order Date :- 13.9.2017

S.Chaurasia